

5. COMPANY'S RESPONSIBILITIES

5.1 The Company will:

- a. co-operate with Careem in all matters relating to the Services; and
- b. respond to reasonable requests in connection with the Services, and ensure that they are accurate and complete.

5.2 If Careem's performance of its obligations under this Contract is prevented or delayed by any act or omission of the Company, its agents, subcontractors, consultants or employees, then, without prejudice to any other right or remedy it may have, Careem shall be allowed an extension of time to perform its obligations equal to the delay caused by the Company.

6. INTELLECTUAL PROPERTY RIGHTS

6.1 In relation to the Company Materials, the Company:

- a. and its licensors shall retain ownership of all Intellectual Property Rights in any Company Materials; and
- b. grants Careem a fully paid-up, worldwide, non-exclusive, royalty-free, non-transferable licence to use, copy, modify, publish and distribute the Company Materials for the Term of this Contract for the purpose of providing the Services to the Company.

6.2 The Company:

- a. warrants that the receipt and use of the Company Materials in the performance of this Contract by Careem, its agents, subcontractors or consultants shall not infringe the rights, including any Intellectual Property Rights, of any third party; and
- b. shall indemnify Careem in full against all liabilities, costs, expenses, damages and losses (including but not limited to any direct, indirect or consequential losses, loss of profit, loss of reputation and all interest, penalties and professional and legal costs and expenses (calculated on a full indemnity basis) suffered or incurred by Careem arising out of or in connection with any claim brought against Careem, its agents, subcontractors or consultants for actual or alleged infringement of a third party's Intellectual Property Rights arising out of, or in connection with, the receipt or use of the Company Materials in the performance of this Contract.

6.3 The Company agrees that, for the purpose of providing the Services to the Company, Careem shall have the right to make modifications to the Company Materials in accordance with Careem's design guidelines, save that Careem will not make modifications to any logos included in Company Materials.

6.4 This clause 6 shall survive termination of the Contract.

7. CONFIDENTIALITY AND DATA

7.1 Each Party undertakes that it shall not at any time disclose to any person any confidential information concerning the business, affairs, customers, clients or suppliers of the other Party, except as permitted below.

7.2 Each Party may disclose the other Party's confidential information:

- a. to its employees, officers, representatives, contractors, subcontractors or advisers who need to know such information for the purposes of exercising the Party's rights or carrying out its obligations under the Contract. Each Party shall ensure that its employees, officers, representatives, contractors, subcontractors or advisers to whom it discloses the other Party's confidential information comply with this clause 7; and
- b. as may be required by law, a court of competent jurisdiction or any governmental or regulatory authority.

7.3 Neither Party shall use the other Party's confidential information for any purpose other than to exercise its rights and perform its obligations under or in connection with the Contract.

7.4 The Parties agree and acknowledge that no personal data will be shared between the Parties pursuant to this Contract. Should Careem wish to share any personal data with the Company in connection with this Contract, the Company acknowledges it must, and agrees to, enter into an appropriate data sharing agreement for such activities as required by Careem.

7.5 This clause 7 shall survive termination of the Contract.

8. TERM AND TERMINATION

8.1 This Contract shall start on the Start Date and shall continue until the end of the Campaign Period or until the Contract is terminated by either Party in accordance with its terms.

8.2 With the exception of Fixed contracts that will terminate automatically, either Party may terminate this Contract without cause by serving written notice on the other Party by the 20th day of the month for the Contract to terminate at the end of the same month.

8.3 Without limiting its other rights or remedies, either Party may terminate this Contract with immediate effect by giving written notice to the other Party if:

- a. the other Party commits a material breach of any term of the Contract and (if such breach is remediable) fails to remedy that breach within 5 days of being notified in writing to do so;
- b. the other Party has, or is reasonably likely to have, an insolvency event or similar event;
- c. the other Party suspends, or threatens to suspend, or ceases or threatens to cease to carry on all or a substantial part of its business; or
- d. the Enrolment Agreement terminates for any reason, and such termination will be without any obligation to pay any losses incurred by the other Party as a result of termination under this clause 8.3.

8.4 On termination or expiry of this Contract, the Company shall immediately pay to Careem all of Careem's outstanding unpaid receivables and interest and, in respect of the Services supplied but for which no invoice has been submitted, Careem may submit an invoice, which shall be payable immediately on receipt.

8.5 Termination or expiry of the Contract, howsoever arising, shall not affect any of the Parties' rights and remedies that have accrued as at termination or expiry.

8.6 On termination or expiry of this Contract, the following clauses shall continue in force: clause 1 (Definitions), clause 6 (Intellectual Property Rights), clause 7 (Confidentiality), clauses 8.4 – 8.6 (consequences of termination), and clause 11 (General).

9. FORCE MAJEURE

Neither Party shall be in breach of the Contract, nor liable for delay in performing, or failure to perform, any of its obligations under the Contract if such delay or failure result from events, circumstances or causes beyond its reasonable control. In such circumstances the affected Party shall be entitled to a reasonable extension of the time for performing such obligations. If the period of delay or non-performance continues for 4 weeks, the Party not affected may terminate the Contract by giving 30 days' written notice to the affected Party. Under no circumstances will an event of force majeure excuse a Party's obligations to make payments when due under this Contract.

10. DISCLAIMER

CAREEM DOES NOT WARRANT THAT THE PERFORMANCE, CAMPAIGN, TARGETING SELECTIONS OR CONTENT WILL REACH THE AUDIENCE TARGETED OR THAT ITS DELIVERY WILL BE ERROR FREE UNINTERRUPTED OR CONTINUOUS. WITHOUT LIMITING THE FOREGOING CAREEM SHALL HAVE NO LIABILITY FOR ANY USER ACTIVITY OR CLICK FRAUD OR OTHER IMPROPER ACTIONS, OR FOR INVALID CLICKS OR OTHER TECHNOLOGICAL ISSUES, EACH OF WHICH MAY AFFECT THE COST OF ADVERTISING OR THE ACTS OR OMISSIONS OF ANY THIRD PARTY PLATFORMS OR TECHNOLOGIES USED IN CONNECTION WITH THE PLACEMENT AND DELIVERY OF ANY ADVERTISEMENTS. ANY OPTIMISATION WILL BE "AS IS" AND CAREEM MAKES NO REPRESENTATION THAT THE SUCH OPTIMISATION WILL IMPROVE CAMPAIGN PERFORMANCE. THE COMPANY UNDERSTANDS AND ACCEPTS THAT THE CAREEM SERVICE AND THE CAREEM APP ARE PROVIDED "AS IS" AND "AS AVAILABLE". CAREEM DISCLAIMS ALL REPRESENTATIONS AND WARRANTIES, EXPRESS, IMPLIED OR STATUTORY, NOT EXPRESSLY SET OUT IN THIS CONTRACT.

11. GENERAL

11.1 ENTIRE AGREEMENT: This Contract (and any document referred to in it) constitutes the entire agreement of the Parties relating to the subject matter of this Contract. If there is any conflict between any of the documents referred to herein, the order of precedence will be: (1) Order Form; and (2) these Conditions.

11.2 AMENDMENT: Careem may amend, add to, or delete any term or condition of these Conditions at its discretion at any time.

11.3 RIGHT TO ASSIGN: Except as permitted under this clause 11.3, neither Party may assign, subcontract, transfer or deal in any way with its rights or obligations under this Contract without consent. Careem shall be entitled to assign or transfer this Contract (including its rights and obligations hereunder) to any subsidiary or affiliate of Careem or to a person in connection with the sale or other transfer of substantially all of Careem's or a Careem affiliate's equity. Any attempt to deal in any way with a Party's rights or obligations in violation of this clause is null and void.

11.5 WAIVERS: Any waiver by a Party of any right under this Contract must be given in writing.

11.6 SEVERABILITY AND ILLEGALITY: If any provision of this Contract is determined to be invalid, illegal or void by any court or administrative body of competent jurisdiction then the rest of this Contract shall still remain in full force and effect. Where the foregoing applies, the Parties shall cooperate to promptly amend or replace the affected provision with a new provision that achieves a legal result that is as similar as possible.

11.7 RELATIONSHIP BETWEEN THE PARTIES: The Company and Careem are and shall remain independent parties. Nothing in this Contract shall be construed to make either Party an agent, employee, franchisee, joint venture or legal representative of the other Party. Neither Party shall have, or shall represent itself to have, any authority to bind the other Party or act on its behalf.

11.8 RIGHTS OF THIRD PARTIES: This Contract does not create any rights which are enforceable by any person who is not a Party to this Contract.

11.9 NOTICES: Any notice or other communication given under or in connection with this Contract must be in writing. Any notice or communication which is not delivered on a business day, or which is delivered after 5pm (local time of the recipient) on a business day, shall be deemed to have been delivered on the next business day.

11.10 GOVERNING LANGUAGE: This Contract is drawn up in the English language and the English language version of this Contract shall always prevail over any translation.

11.11 CUMULATIVE RIGHTS: Unless otherwise stated, the rights and remedies of a Party under this Contract do not exclude any other right or remedy provided by Applicable Law.

11.12 GOVERNING LAW: This Contract and any disputes, claims or controversies arising out of, relating to or in connection with the present Contract, including any question regarding its formation, existence, validity, enforceability, performance, interpretation, breach or termination shall be governed by and construed in accordance with the laws of the Emirate of Dubai and the applicable federal laws of the United Arab Emirates.

11.13 JURISDICTION: Each Party hereto irrevocably agrees that the courts of Dubai International Financial Centre (DIFC) in the city of Dubai shall have exclusive jurisdiction to finally settle any dispute or claim arising out of the formation, performance, interpretation, nullification, termination or invalidation of this Contract or arising therefrom or relating thereto in any manner whatsoever.

11.14 COMPLIANCE: The Parties agree to comply with all applicable bribery and anti-corruption laws. The Parties will not pay or give, offer or promise to pay or give, or authorize the promise, payment or giving directly or indirectly, through a subcontractor or third party, any monies or anything of value to any person or firm, including, but not limited to, those employed by or acting for or on behalf of any governmental customer, any government official or employee, any political party, any employee of any political party, any member of a ruling or royal family, or any candidate for political office for the purpose of inducing or rewarding any favourable action in any matter related to the subject of this Contract or the business of Careem. The Company agrees to keep accurate books and records in relation to this Contract and that any payments that the Company makes to third parties in connection with this Contract shall be supported by written, complete and accurate invoices that shall be maintained by the Company for the duration of this Contract and for one (1) additional year and made available for inspection by Careem upon request. The Company agrees to promptly report to Careem any potential or actual violations of any anti-corruption laws relating to this Contract or Careem's business which it obtains knowledge of, and shall cooperate in good faith with Careem in investigating any such violation.